Bobcat Trail Homeowners Association, Inc.
Board of Directors Meeting Minutes
January 24, 2024

1. **CALL TO ORDER**
   President Michael San Antonio called the meeting to order at 3:02pm which was conducted at the Bobcat Trail Community Center and accessible via Zoom video Conference call.

2. **STATEMENT OF QUORUM**
   A quorum was declared with six (6) Directors present including, President Michael San Antonio, Vice President Catherine Little, Treasurer Stephen Kohl, Director James Callahan, Director Brent Tawes and Director Doug Knowles.
   Secretary Tammy Holmes was absent.
   ***Management present*:** Rafael Susara, LCAM of Advanced Management, Inc. (AMI) was also in attendance at the Center.

3. **PROOF OF NOTICE**
   It was confirmed that proper notice was provided no less than 48 hours in advance, in accordance with Florida Statute and the Association's Governing Documents.

4. **READING/APPROVAL OF MINUTES (November 29, 2023)**
   A ***motion*** was made by Treasurer Kohl and seconded by Director Callahan to approve the November 29, 2023 Board of Directors' Meeting Minutes as drafted. ***All were in favor and the motion carried unanimously.***

5. **OLD BUSINESS**
   A. **Legal Counsel Update on the Golf Course Fines:** The Association's legal counsel participated via Zoom and provided a brief update on the golf course fines. It was discovered that the golf course owner currently has thousands of dollars' worth of foreclosure actions against him. It was then noted that the cost to the Association to capture what is owed would be more than the legal costs to pursue it, in essence, throwing good money after bad. It was recommended that the CDD also address the ongoing violations regarding the lack of maintenance in and around the golf course properties. A ***motion*** was then made by Director Tawes and seconded by Vice President Little to begin a new lien on the late assessments and fines. ***All were in favor and the motion carried unanimously.***

6. **REPORTS**
   A. **AMI Management Report:**
   Rafael Susara, LCAM with Advanced Management, Inc. (AMI) provided an Operational Summary report since the last Board of Directors' Meeting to include the number of broadcasted emails (2), violations (30), ARC requests (23), and delinquent accounts (96).

   B. **Officers Reports:**
   - ***President Report* -** It was announced that there is a scheduled Town Hall meeting with the County Commissioners on February 28, 2024.

   - ***Treasury Report* -** It was reported that as of the end of November 2023, the total operating cash balance had reached $40,302 with total assets of $75,320. Also reported was a recognized fund balance of $49,607. A ***motion*** was made by Director Knowles and seconded by Director Tawes to approve the Treasurers' report. ***All were in favor and the motion carried unanimously.***

   C. **Committee Reports:**
   1. ***ACC* -** It was reported that numerous ACC requests have been approved to include

new roofs, landscape improvements, house painting projects, and shutter installation. The Committee reported that stained light poles are a consistent issue throughout the community. Also noted was that the ACC guidelines are being reviewed and possible revisions are being considered.

2. ***TES –*** Nothing new to report.

3. ***Hearing Panel -*** None reported. A member of the Hearing panel had recently resigned, and a replacement will be sought.

It was at this point where President San Antonio requested that the CERT Committee be included in future agendas. The CERT committee (Community Emergency Response Team) was formulated as a volunteer training program and organization that first responders can rely on during a disaster situation. Meetings have been scheduled to create awareness and enlist volunteers. A ***motion*** *was made by President San Antonio and seconded by Vice President Little to approve a budget line item dedicated to this committee and to award them an initial $5,000 to be paid for from Surplus funds.* ***All were in favor and the motion carried unanimously.***

7. **NEW BUSINESS**

A. **Mailboxes:**
Considerations were made to have all mailboxes replaced to maintain consistency throughout the community. Legal Counsel supports the idea and confirms that the Association has the authority to require a uniform look. The issue though is that the mailboxes have never been consistent since the development of the Association. The topic was tabled as there are more urgent issues to address.

B. **Golf Course Mowing:**
Considerations were made to approve the Association to rent the proper equipment and perform property maintenance on the golf course at a potential cost to the Association of $6,200 for a one-month occurrence with owner volunteers operating the equipment. Legal Counsel expressed concerns with this approach regarding the costs that may not be recoverable.

C. **Sidewalk Repair:**
It was noted that some sidewalks are simply beyond cleaning. The ACC will assess the severity and include the CDD when discussing potential solutions. Owners recommended certain products that will remove stains from concrete.

D. **Golf Course Foreclosure Update:**
This agenda item was addressed during Legal Counsel's update.

E. **Golf Course Fines Update:**
This agenda item was addressed during Legal Counsel's update.

F. **Increase Amount of Fines:**
Considerations were made to increase the Board imposed fines back to $10,010, but an argument was made that there is not enough data to support doing so. It was suggested that the fining policies currently in place be reviewed and updated accordingly.

8. **POTENTIAL FINES:**

A. **3237 Lady Palm Way–** *Light pole is stained***:**
A ***motion*** was made by Director Callahan and seconded by Treasurer Kohl to impose a fine of $100, plus $10 for each day of non-compliance not to exceed $1,010. ***All were in favor and the motion carried unanimously.***

B. **1520 Palmetto Palm Way –** *Front yard has more than 3 pots***:**
A ***motion*** was made by Director Callahan and seconded by Director Tawes to impose a fine of $100, plus $10 for each day of non-compliance not to exceed $1,010. ***All were in favor and the motion carried unanimously.***

C. **3394 Royal Palm Way –** *Light pole is stained***:**
A ***motion*** was made by Director Callahan and seconded by Director Tawes to impose a fine of $100, plus $10 for each day of non-compliance not to exceed $1,010. ***All were in favor and the motion carried unanimously.***

D. **2499 Silver Palm Road –** *Stain on structure above garage:*
It was reported that the non-compliance issue had been resolved.

E. **2569 Silver Plam Road –** *Light Pole is crooked:*
It was reported that the non-compliance issue had been resolved.

An additional violation was discussed at this point.

- **1883 Canary Palm Way –** *Weeds in lawn:*
A ***motion*** was made by Director Callahan and seconded by Director Tawes to impose a fine of $100, plus $10 for each day of non-compliance not to exceed $1,010. ***All were in favor and the motion carried unanimously.***

9. **OWNERS COMMENTS**: *All owners present were afforded the opportunity to ask questions.*
   - Owner questioned what weeds are considered a violation.
   - Owner asked for clarification for the $5,000 awarded to the CERT committee.

10. **NEXT MEETING DATE:** The next meeting is scheduled for February 28, 2024 at 3:00pm at the Community Center and via Zoom video conference call.

11. **ADJOURNMENT:**
With there being no further business to discuss, a ***motion*** was made by Treasurer Kohl and seconded by Director Tawes to adjourn the meeting at 4:53pm. ***All were in favor and the motion carried unanimously.***

Respectfully submitted for Tammy Holmes, Secretary, by

Rafael Susara
LCAM with Advanced Management, Inc. (AMI)